

25CMCV02155 25CMCV02155

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-26

Motion: DEFENDANT DIEGO ANTONIO GARCIA'S MOTION TO STRIKE

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Case Number: 25CMCV02155 Hearing Date: June 26, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ALBERTO MAGALLON GARCIA, et al.,

Plaintiffs,

vs.

DIEGO

ANTONIO GARCIA, et al.,

Defendants.

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CASE NO: 25CMCV02155

[TENTATIVE]

ORDER RE: DEFENDANT DIEGO ANTONIO GARCIA'S MOTION TO STRIKE

Dept.

A

DATE:

June 26, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 12/22/2025

TRIAL:

08/28/2028

MOVING PARTY: Defendant

Diego Antonio Garcia

RESPONDING PARTY: Plaintiffs

Alberto Magallon Garcia and Sofia Mora Gomez Magallon

1. Background

This is a motor vehicle collision action. Plaintiffs

Alberto Magallon Garcia and Sofia Mora Gomez Magallon (collectively, "Plaintiffs") allege that defendants Diego Antonio Garcia, Constantine Sergeev, and Diana Laura Serrano (collectively, "Defendants") negligently operated their vehicle so as to cause a multi-car collision, causing Plaintiffs personal injury and property damage. Plaintiffs allege that Garcia was operating his vehicle at the time of the incident while severely intoxicated.

2. Discussion

Garcia moves to strike the request for punitive damages from the complaint. Garcia contends that an allegation of driving while intoxicated is insufficient to support a finding of malice, oppression, or fraud, as is required to establish punitive damages. In opposition, Plaintiffs contend that they have adequately pled malice.

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code of Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721 (College Hospital).) These statutory elements include allegations

that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).)

“In order to

survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.

[Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

“Malice is defined in the statute as conduct intended

by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (College Hospital, supra, 8 Cal.4th at p. 725 [examining Civ. Code, § 3294, subd. (c)(1)].) “A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896.)

“As amended to

include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (College Hospital, supra, 8 Cal.4th at p. 725.) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’ ” (Tomaselli v. Transamerica Ins. Co.

(1994) 25 Cal.App.4th 1269, 1287.)

An allegation of driving while intoxicated may, in appropriate circumstances, “evidence a conscious disregard of probable injury to others and be sufficient to warrant an award of punitive damages.” (Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 88 (Dawes).) However, “[t]he risk of injury to other from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable.” (Id. at p. 89.) The court in Dawes found that, where the plaintiff had alleged not only that the defendant was driving while intoxicated but was “zigzagging in and out of traffic at a speed in excess of 65 miles per hour in a 35-mile-per-hour zone at the entrance to a popular recreation area on a Sunday afternoon when many pedestrians and bicyclists were in the immediate vicinity,” the risk of injury to others under the circumstances alleged was probable and therefore sufficient to justify punitive damages.

Here, by contrast, Plaintiff has alleged that Garcia operated a motor vehicle while severely intoxicated, traveled at an unsafe speed, and failed to maintain a proper lookout. The court in Dawes quoted Justice Franson stating that “[a]llegation of intoxication, excessive speed, driving with defective equipment or the running of a stop signal, without more, do not state a cause of action for punitive damages. [Par.] On the other hand, if the facts show that the defendant intentionally drove his vehicle at a high speed into an intersection crowded with pedestrians, or if he drove at a high speed through a crowded residential area where children were playing in the street, a legitimate inference of actual malice perhaps could arise. This would be particularly true if the defendant had not been drinking, or, if drinking, he was not under the influence to the point where he was incapable of being aware of the situation confronting him. Under these circumstances, it reasonably might be said that the defendant acted in such an outrageous and reprehensible manner that the jury could infer that he knowingly disregarded the substantial certainty of injury to others. [Citation.]” (Id. at p. 90.) Here, Plaintiff has made no specific factual allegations demonstrating that Garcia acted in such an outrageous and reprehensible manner that a reasonable trier of fact could infer that he knowingly disregarded the substantial certainty of injury to others, as merely driving at an unsafe speed, even while intoxicated, is insufficient to establish that injury to others was probable without further information.

In opposition, Plaintiff cites to Sumpter v.

Matteson (2008) 158 Cal.App.4th 928 and Busboom v. Superior Court (1980) 113 Cal.App.3d 550 for the proposition that driving while intoxicated may support a request for punitive damages. However, both Sumpter and Busboom include further allegations of dangerous driving beyond merely driving while intoxicated. In Sumpter, the defendant ingested methamphetamines immediately before driving to go on a mini-vacation to consume more drugs, then drove at unsafe speeds through a red light without braking. (Sumpter, supra, 158 Cal.App.4th at pp.930-931.) In Busboom, the defendant drove southbound in the northbound lane of the highway while drunk. (Busboom, supra, 113 Cal.App.3d at p. 555.) Therefore, both Sumpter and Busboom are distinguishable, as they included allegations of dangerous driving, with knowledge of probably dangerous consequences, substantially beyond those alleged in the complaint in the instant action.

The court will therefore grant Garcia's motion to strike punitive damages from the complaint, with leave to amend.

3. Conclusion

Based on the foregoing, the court GRANTS Defendant Diego Antonio Garcia's motion to strike punitive damages from the complaint, with leave to amend.

Plaintiffs may file an amended complaint not later than July 6, 2026.

Garcia
is ordered to give notice.

IT
IS SO ORDERED.

DATED: June 26, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court